



RESIDENTIAL USE -LEASE AGREEMENT ONLY BETWEEN EKURHULENI HOUSING COMPANY (PTY) LTD AND A NATURAL PERSON

EKURHULENI HOUSING COMPANY (PTY) LTD

Registration Number 2000/007936/07 ("the Landlord")

Represented by ("the Agent")

and

_____ (full name/s)

_____ (Identity Number/s)

("the Tenant")

SUMMARY OF THE TENANT COSTS AT THE TIME OF SIGNING THIS AGREEMENT IN RESPECT OF UNIT NUMBER:

GERMISTON

ONCE OFF ~~NON-REFUNDABLE~~ NON-REFUNDABLE COSTS:

Lease Preparation fee: R _____

Credit check fee: R _____

REFUNDABLE INITIAL DEPOSIT:

Calculated as follows: R _____

Initial deposit – Premises: R _____

Initial deposit – Tenant contribution: R _____

MONTHLY RENTAL:

Unit: R _____

Shade port parking bay/s (if applicable): R _____

Open parking bay/s (if applicable): R _____

Storeroom/s (if applicable): R _____

MONTHLY TENANT CONTRIBUTIONS:

Electricity: (If Applicable) for the premises	R _____ payable if is applicable based on the independent electricity meter
Refuse:	R _____
Security fees (if applicable):	R _____
Sewerage:	Consumption fee based on the Municipal rates
Water: (if applicable)	R----- if its applicable/Pre paid water system for the premises

The Landlord leases to the Tenant the premises and the Tenant hires the premises from the Landlord on the terms of this agreement.

The below paragraphs are drawn to the attention of the Tenant in terms of Section 49 of the Consumer Protection Act 68 of 2008: 6.4.1, 6.5.7, 7.4, 14.4.2, 16.1, 16.2, 16.3, 16.4, 16.5, 16.6, 16.7, 16.8, 20.2, 21.1, 21.2, 22.1, 22.1.1, 22.1.2, 22.2, 22.2.1, 22.2.2, 22.2.3, 27.1, 27.2, 27.3, 27.4, 27.5, 27.6, 27.7, 27.8, 27.9, 27.9.1, 27.9.2, 27.10, 32.2, 38.

1. DEFINITIONS AND EXPLANATIONS

1.1 In this agreement, the words below mean the following and the following will apply:

- 1.1.1 **"Agreement"** will mean this Lease Agreement with the attachments.
- 1.1.2 **"Building"** refers to the complex Pharoe Park/Delville Complexes /Airport Park Complexes and Chris Hani Complexes in which the premises are located.
- 1.1.3 **"Business Day"** mean any day of the week, excluding Saturdays, Sundays and public holidays;
- 1.1.4 **"Date of Signature"** means the date on which this agreement is signed by the last party;
- 1.1.5 **"EHC"** refers to the EHC or Ekurhuleni Housing Company (Pty) Ltd applicable to the building;
- 1.1.6 **"Fair wear and tear"** means damage or loss to the premises or the building which happens as a result of ordinary use and exposure over time;
- 1.1.7 **"Month"** means a calendar month from and including the first to and including the last day of the month;
- 1.1.8 **"Rent"** means the rental that must be paid by the Tenant to the Landlord for renting the premises and the parking and storeroom if applicable;
- 1.1.9 **"Tenant contribution"** means amounts the Tenant pays the Landlord for electricity, refuse, sewerage and water as well as security if applicable;
- 1.1.10 Any reference to one gender includes the other gender and any reference to the singular includes the plural and vice versa;
- 1.1.11 Reference to a natural person includes reference to a juristic person and vice versa;
- 1.1.12 This agreement will be interpreted and applied in accordance with South African law;
- 1.1.13 The Landlord and the Tenant and their representatives will communicate and correspond with one another solely in English.

2. LEASED PREMISES

The Landlord leases to the Tenant, who hires from the Landlord unfurnished unit number: _____
 ("the premises") a _____ bedroom unit comprising bathroom, open plan kitchen, dining room and living room

, floor number _____ and Block _____ in the building known as Pharo Park/Delville/Air Port Park situated in Germiston 1441 ("the building").

3. **PERIOD OF LEASE AND NOTICE PERIOD**

3.1 This agreement commences on the ____ day of _____ ("commencement date") and end _____ for a period of 24 months. This lease will be renewable subject to you meeting the EHC criteria ie original salary slip and three months bank statement, South African valid ID and will continue until terminated by either party giving the other no less than 20 business days written notice of termination, provided that such notice of termination:

3.1.1 in order **not to attract a penalty:**

3.1.1.1 may not be given by the Tenant to terminate the agreement prior to the last day of _____; and

3.1.1.2 may not be given to terminate the agreement other than on the last day of any given month.

3.1.2 **Will attract a penalty of:**

2 calendar months rental or the rental due until _____ whichever is the lesser if notice is given to terminate the agreement prior to the last day of _____ or

3.1.3 **Will attract a penalty of:**

the value of the rental per calendar day from the effective date of the notice until the last calendar day of the month.

3.2 The Tenant must deliver the notice in terms of clause 10 of this agreement.

4. **DEPOSIT AND LEASE ADMINISTRATION FEES**

4.1 The Tenant, when signing this agreement, will pay a refundable deposit to the Landlord. The deposit is there to allow the Landlord to repair and paint the premises if there are any damages, to clean the premises if they are dirty, to pay for pest control if necessary, to pay the Landlord any rental that was not paid by the Tenant during tenancy, to pay for any if applicable i.e. electricity, refuse, security sewerage, water and charges as referred to in clause 7, to replace lost keys, remote controls and access cards and to cover any other amount due to the Landlord by the Tenant when the Tenant leaves the premises at the end of the tenancy, or any time before.

4.2 The initial deposit amount is R _____.

4.3 The deposit amount will be invested by the Landlord in an interest-bearing account held in the Landlord's name. Accrued interest to be payable to the tenants deposit refund.

4.4 If the Tenant does not owes any money to the Landlord for any of the reasons provided for in this agreement, then the deposit amount will be paid by the Landlord to the Tenant within 20 business days of the Tenant vacating the premises, by cheque or any other method suitable to the Landlord.

4.5 If the Tenant owes any money to the Landlord for any of the reasons provided for in this agreement, then such amounts owing will be deducted by the Landlord from the deposit and any amount remaining in respect of the deposit will be refunded within 20 business days of restoration of the premises, by cheque or any other method suitable to the Landlord.

- 4.6 If there is any increase in the rental and / or the tenant contribution that the Tenant must pay, then the Tenant must pay extra towards the deposit so that the deposit is equal to the new rental and new tenant contributions or two months of the new rental amount whichever of the two is the greater. Payment must be made on presentation of a statement for the increased deposit amount by the Landlord delivered in terms of clause 10.
- 4.7 The Tenant is not entitled to use the deposit that the Landlord has for the rental and tenant contributions for the tenant's obligations in respect of the last month of this agreement or for any other amount the Tenant owes the Landlord.
- 4.8 The Tenant when signing this agreement will pay to the Landlord the following non-refundable fees:
Lease administration fee of: R _____

5. **OCCUPATION**

The Tenant will take physical occupation of the premises on the date of commencement of this agreement, provided that the Tenant has paid the Landlord the deposit, credit check fee, lease preparation fee, first month's rent and tenant contributions unless the Landlord agrees otherwise in writing.

NB: If the tenant fail to occupy the unit for whatever reason after paid a deposit a tenant have to submit a letter stating the reason for not occupying or cancelling occupation EHC will refund full deposit except the administration costs.

6. **PAYMENT OF RENTAL BY THE TENANT**

6.1 **Unit Rental**

The rent for the premises will be R _____ per month, until the _____ day of _____ of each year, subject to a yearly increase on the _____ of each year in terms of clause 6.4.

6.2 **Parking Rental**

6.2.1 The Tenant will have the use of one carport parking bay number: _____ to park the Tenant's vehicle only and provided that the Tenant continues to have the need for the carport parking bay. If the Tenant no longer needs a carport parking bay, then the Landlord will make the carport parking bay available to other tenants of the Landlord.

6.2.2 Additional parking may be available to the Tenant during the lease period (subject to space being available), as follows:

6.2.2.1 Open parking bay number _____ at an initial monthly rental of R _____

6.2.2.2 Shade port parking bay number _____ at an initial monthly rental of R _____ until the _____ of 01 July of each year, subject to the yearly increase on the _____ of _____ each year in terms of clause 6.4.

6.2.3 If the tenant allows any vehicle to be parked in the building in a manner that is not allowed in terms of this agreement, then the rental per incident per vehicle per calendar day parked will be equal to the monthly rental of that type of parking bay per month.

6.2.4 The terms of this agreement are applicable to the parking except those which are obviously not applicable.

6.3 **Storeroom Rental**

- 6.3.1 The Tenant will be liable for storage cost incurred by EHC during vacating of units due to excess furniture or during the evictions process. The terms of this agreement are applicable to the storeroom except those which are obviously not applicable.

6.4 **Rental Increase**

6.4.1 The rent that the Tenant is paying for the Unit, parking and storeroom, if applicable, will increase on the 01 of July of each year, by an amount equal to the Consumer Price Index . whichever is the higher irrespective of when the agreement started, except decided otherwise by the EHC board. The Landlord will give the tenant 2 calendar months' notice of the increase.

6.4.2 The levies and / or rates and taxes for the Premises might increase during the lease period. If there is an increase then the Landlord may increase the monthly rental to the increase in the levies and / or rates and taxes as and when this occurs without notice

6.4.3 Should a new tax be introduced on the premises or on the rental, tenant contributions or other amounts due in terms of this agreement, then the Landlord may increase the monthly rental equal to the value of the new tax that may be introduced as and when this occurs without notice.

6.5 **General Provisions for payment of rent, tenant contributions and other amounts due**

6.5.1 All rental, tenant contributions and other amounts due in terms of this agreement will be payable monthly in advance and must be paid without deduction or set off and must have reflected and been cleared in the Landlord's bank account on or before the first calendar day of every month.

6.5.2 The Landlord's banking details are **ABSA BANK, ACCOUNT NUMBER 4052348660, BANK CODE, 334542**. The Tenant must ensure that his surname and account number are inserted as a reference on the payment.

6.5.3 The Tenant is not allowed to pay a lower amount of any amount due in terms of this agreement for any reason whatsoever.

6.5.4 The rent and any other amounts due in terms of this agreement are to be paid free of cash deposit fees and other deposit and bank charges. If any bank charges are charged, the Landlord may recover such amounts from the Tenant. No cash will be received from the Tenant by the Landlord other than by direct bank deposit.

6.5.5 The Tenant must make sure that the Landlord knows that all payments due have been made, by providing the Landlord with proof of payment before close of business on or before the first calendar day of every month.

6.5.6 The rent does not include Tenant Contributions.

6.5.7 **Any payment received will first be allocated to: administration fees, bank charges, legal costs, interest, repairs and maintenance, cleaning, refuse, sewerage, security (if applicable), rent, then water and finally electricity were is applicable**

6.5.8 No cash payments will be regarded as received unless given on the agent's customary receipt form (see example as below).

Receipts will only be issued for cash **and receipts will be issued.**

7. **TENANT CONTRIBUTIONS FOR ELECTRICITY, REFUSE, SECURITY, SEWERAGE AND WATER**

7.1 The Tenant will pay the Landlord all amounts that the Landlord gets billed for directly or indirectly for the supply, use and or consumption of services, such as: ~~electricity~~, refuse, sewerage, water and other municipal charges, ~~as well as security charges where applicable in addition to the rent~~.

7.2 If the service provider, supplier and / or local authority charges the Landlord for the services and / or tenant contributions then:

7.2.1 The Tenant will pay the Landlord monthly in advance the basic charges for refuse, sewerage, water ~~and other municipal charges as well as security charges where applicable~~. At the time of signing this agreement, these basic charges are as follows:

Water: R

Refuse: R

Sewerage: R

~~Other: R~~

These basic charges must have reflected and been cleared in the Landlord's bank account on or before the first calendar day of every month. These form part of the monthly rental charge.

7.2.2 All charges for the services and / or tenant contributions will be charged by the Landlord in terms of the applicable charges as charged from time to time by the service provider, supplier and / or local authority, without the need of the Landlord giving the tenant notification of changes or increases from time to time.

7.2.3 The Landlord is allowed to cancel the agreement if there is no money available from the Tenant to pay the Landlord on or before the due date for the services and or tenant contributions and that this clause is material to the agreement.

7.3 If the service provider, supplier and / or local authority charges the Tenant for the services or tenant contributions then:

7.3.1 The Tenant will make all necessary arrangements with the service provider, supplier and / or local authority for the opening of an account, the payment of the necessary deposits and the submission of accounts directly to the Tenant for full and proper payment by the Tenant on or before the due date.

7.3.2 To allow the Landlord to know what is owed to the service provider, supplier and / or local authority, the Tenant agrees that the Landlord may obtain a printout of the Tenant's account.

7.3.3 If the Tenant does not pay the service provider, supplier and / or local authority for the services and / or tenant contributions, the Tenant agrees that the Landlord may in its discretion take money from the Tenant's deposit to pay these accounts. The Tenant is aware that the Landlord is allowed to cancel the agreement if any amounts are overdue to the service provider, supplier and / or local authority and that this clause is material to the agreement.

7.3.4 At the discretion of the Landlord, the Landlord may choose to have the account/s for services and / or tenant contributions registered in the Landlord's own name for recovery by the Landlord from the Tenant.

8. **CONDITIONS AND INSPECTION OF THE PREMISES**

- 8.1 ~~IF the Tenant~~ has / has not viewed the premises and accepts the premises as they are.
- 8.2 The Tenant and the Landlord will get together and inspect the premises before the Tenant moves in to see if there are any defects.
- 8.3 A list of those defects, if any will be written down and forms part of the integral part of the lease agreement. In preparing a list of defects ~~no obligation is placed on the Landlord~~ will to repair these items, the intention being to record the condition of the premises at the time that the Tenant took occupation.
- 8.4 At a mutually convenient time 3 business days prior to the Tenant vacating the premises, or after the Tenant has completely vacated the premises, whichever is the later, the Landlord, the Agent, the EHC official or their agents and the Tenant will get together and conduct a final inspection of the premises to see if there were any damages caused to the premises. Any damages will be written down on attachment any repairs and cleaning the Tenant intends doing to the premises must be done before the final inspection referred to in this clause, failing which the Landlord will have them attended to at the Tenant's cost.
- 8.5 If the Tenant does not come to the final inspection when asked by the Landlord, the Landlord will inspect the premises without the Tenant to determine if there were any damages and such determination will be final.
- 8.6 The Social Housing Regulatory Authority may request the Tenant and the Landlord to inspect the Unit / premises as mandated by the Social Housing Act and it is expected that the Tenant will cooperate with such a request.

9. **USE OF PREMISES**

- 9.1 The Tenant will only use the premises to live in, not to work from and for no other reason without the Landlord's written consent allowing the Tenant to do so.
- 9.2 The premises will be used and lived in personally by the Tenant together with the following people only for as long as the Tenant personally occupies the premises:
- Name: _____ Identity number: _____
- Name: _____ Identity number: _____
- Name: _____ Identity number: _____
- Name: _____ Identity number: _____
- Name: _____ Identity number: _____
- Name: _____ Identity number: _____
- No more than _____ people will live in and / or spend the night in the premises at any time and then only if their names are recorded above unless the Landlord agrees otherwise in writing.

10. **ADDRESS FOR GENERAL CORRESPONDENCE**

- 10.1 General correspondence delivered to the premises by hand or sent to the facsimile number or email address below will be considered received on the date of delivery or transmission.
- 10.1.1 The Landlord: Telephone number: (011) 825 0158
Facsimile number: (011) 825 0151
Address: Cnr 7th Avenue Street

Hangover Office Park
Endenville, 1400

10.1.2 The Tenant: Facsimile number: (011) 825 0151
Email address: info@ehco.org.za
Address: The premises

10.2 The Landlord and Tenant may change their address for service of general correspondence to any other address in South Africa by written notice to the other person. Such notice must be sent by registered post to the address in this clause and such change will take effect 4 business days after posting.

11. **ADDRESS FOR SERVICE OF LEGAL DOCUMENTS**

11.1 The Landlord and Tenant choose the following addresses at which documents in any legal proceedings in connection with this agreement must be served and will be considered served if left there (*their domicilium citandi et executandi*):

11.1.1 The Landlord: _____

11.1.2 The Tenant: The Premises

11.2 Any letters or notices that either the Landlord or Tenant sends by registered post to the other person will be considered received 4 business days after the date of posting.

11.3 The Landlord and the Tenant may change their address for service of legal documents to any other address in South Africa by written notice to the other person. Such notice must be sent by registered to the address in this clause and such change will take effect 4 business days after posting.

12. **ALTERATIONS AND IMPROVEMENTS DONE TO THE PREMISES BY THE TENANT**

12.1 The Tenant will not be entitled to compensation for improvements, alterations or additions made by him to the premises, unless the Landlord agrees otherwise in writing.

12.2 The tenant is not to effect any alterations and improvements to the property without prior written consent of the landlord.

~~12.2~~ 12.3 If any improvements, alterations or additions are by the Tenant with or without the written consent of the Landlord, the Tenant will, prior to vacating the premises, unless the Landlord agrees otherwise in writing (in which case any alterations or improvements will become the Landlord's property), or remove them and
reinstate the premises to the condition in which they were before the changes were effected, failing which, the Tenant will be liable to the Landlord for the cost of reinstating the premises to the condition in which they were before the changes were effected.

13. **CANCELLATION**

13.1 **Cancellation by the Landlord**

13.1.1 The Landlord will be entitled, over and above any rights in law, to immediately cancel this agreement, should the Tenant commit its first breach of the agreement and fail to pay the rental, any other amount in terms of the agreement or fail to comply with any term of this agreement within 20 business days of a letter being delivered to the Tenant telling him to do what is necessary to sort out the wrong doing.

13.1.2 The Landlord will be entitled, over and above any other rights in law, to immediately cancel this agreement, should the tenant commit a second breach of the agreement.

13.2 **Termination ~~Cancellation~~ by Tenant**

The Tenant will be entitled, over and above any other rights in law, to immediately cancel this agreement (on which date the Tenant must vacate the premises) if the Landlord fails to comply with any terms as required in terms of this agreement within 20 business days of a letter being delivered to the Landlord telling him to do what is necessary to sort out the wrongdoing.

13.3 **Termination ~~Cancellation~~ disputed**

If the Landlord or ~~Terminating nant cancels~~ this agreement and the Tenant unlawfully remains in occupation of the premises then pending the tenant vacating the premises:

13.3.1 The Tenant will continue to pay an amount equal to the rent monthly in advance, and any other amounts payable in terms of this agreement;

13.3.2 The Landlord will be entitled to keep the payments without prejudice ~~to the cancellation~~, on account of any damage the Landlord may suffer from the Tenant's failure to vacate the premises;

13.3.3 The Tenant will comply with all other obligations of the Tenant set out in this agreement as if the ~~termination cancellation~~ had not taken place and the Landlord may enforce the Landlord's rights under this agreement in all respects without prejudice to the ~~termination cancellation~~.

14. **CESSION OF AGREEMENT, RIGHTS AND OBLIGATIONS**

14.1 This agreement, including the Landlords rights and obligations are fully transferable by the Landlord. The Landlord will advise the Tenant in writing that he has transferred his benefits, rights and obligations and to whom they have been transferred.

14.2 This agreement, including the Tenants' rights and obligations are **not transferrable by the tenant**.

15. **CLEANING, MAINTENANCE AND REPAIR WORK TO THE PREMISES**

15.1 The Landlord will not be responsible for or carry the costs of any cleaning, repairs, maintenance or painting, if the work is required because of damage caused by the Tenant, or anyone else's property, which includes damage caused as a result of changing colour schemes, smoking or burning of incense in the premises and / or the building.

15.2 The Tenant must keep the premises and all other items forming a part of the premises in a clean, tidy and sanitary condition in so far as it depends on the Tenant;

15.3 When the agreement ends the Tenant must, have the carpets (if applicable) cleaned by a professional carpet cleaning company at his own cost. If the Landlord is not happy with the cleaning, the Landlord will clean or have the carpets cleaned again at the Tenant's cost.

15.4 In the event that the Tenant does not clean and / or do repair work which he is supposed to do in respect of the premises and / or the building, then the Landlord will be allowed to do and pay for the work and charge the Tenant the bill for payment without the need of first giving the Tenant a quotation.

15.5 If there is work to be done to the premises, which is not the Tenant's fault, the Tenant must tell the Landlord in writing within 20 business days of finding out that work needs to be done and the Landlord will attend to it within a reasonable period of time. If the Tenant does not tell the Landlord to do so, then the Tenant must have the work done at his own cost.

15.6 The Tenant must take all possible reasonable steps to stop blockages and obstruction in the drains, sewerage pipes and water pipes in the premises and the building in so far as it depends on the Tenant.

16. **CONSENT BY TENANT**

The Tenant hereby agrees and allows:

- 16.1 the Landlord, the EHC official or their agents, at all times, to contact, request and obtain information from any credit provider (or potential credit provider) or registered credit bureau that may be necessary to assess the behaviour, profile, payment patterns, indebtedness, whereabouts, and creditworthiness of the Tenant;
- 16.2 the Landlord, the EHC official or their agents, to furnish information concerning the behaviour, profile, payment patterns, indebtedness, whereabouts, and creditworthiness of the Tenant to any registered credit bureau or to any credit provider (or potential credit provider) seeking a trade reference regarding the Tenant's dealings with the Landlord;
- 16.3 the Landlord, the EHC official or their agents, to make his name, surname and identity number and or fingerprints available to the South African Police Services, to conduct a criminal name clearance;
- 16.4 the Landlord, the EHC official or their agents, the right to contact the Tenants at any time through any means and the Tenant will make himself available at these times.

17. **COSTS AND LEGAL FEES**

- 17.1 If either the Landlord or the Tenant has to take legal action against the other, either of them will be entitled to claim costs on the attorney and own client scale from the defaulting party.
- 17.2 The Tenant and Landlord will be responsible to pay the other any reasonable damages that may come about because of the late payment of the rentals and or tenant contributions on the part of the Tenant, or any other breach of the terms of this agreement by either party.

18. **DEATH OF THE TENANT**

If the Tenant dies whilst in occupation of the premises, any other occupants of the premises must vacate the premises upon receiving 20 business days' notice by the Landlord. If the Tenant's and or any other occupant's personal effects and possessions are not moved from the premises the Landlord may in its discretion move and place them in storage at the cost of the owner of the effects and possessions and / or the deceased Tenant's Estate. Failing collection of the stored goods within 3 months of placing them in storage such goods may be sold by the storer of the goods to pay the storage costs.

19. **DELAY IN GIVING AND TAKING OCCUPATION**

- 19.1 If the Landlord is unable to give the Tenant occupation of the premises on the commencement date, then at the option of the tenant either:
 - 19.1.1 the Landlord will prepare premises for occupation with a minimum of delay and no rental or tenant contributions will be payable by the Tenant for the period that he did not have occupation of the premises and the Tenant agrees to accept occupation of the premises when they are ready without any further compensation for any damages suffered; or
 - 19.1.2 subject to availability, the Tenant may accept other similar premises offered to him by the Landlord in the building or similar terms and conditions to this agreement without any further compensation for any damages suffered; or
 - 19.1.3 the Tenant may terminate the agreement in writing with immediate effect without any further compensation for any damages suffered.

- 19.2 If the Tenant does not take occupation of the premises on the occupation date or within at least three calendar days thereof, then the Landlord may terminate the agreement in writing with immediate effect without jeopardizing any other rights the Landlord may have in terms of this agreement or common law against the Tenant and the deposit or any amounts paid by the Tenant to the Landlord will be forfeited.
20. **ELECTRICAL COMPLIANCE**
- 20.1 The Tenant must at his own cost, keep and maintain in good order and condition ~~of the unit, all switches, plugs, globes, ballasts, starters and also stove and oven: elements, gloves, plates, fuses, fuse holders, thermostats, switches, controls and warning lights, in the premises.~~
- 20.2 ~~It is landlord responsibility to repair and maintain At the end of the agreement the Tenant will pay the Landlord for the Landlord's electrician to~~ check the entire electrical installation in the premises.
21. **ENTERING THE PREMISES BY THE LANDLORD, AGENT REPRESENTATIVES AND WORKERS**
- 21.1 ~~If the Landlord or the EHC official tells the Tenant that he needs to enter the premises and gives the Tenant 12 hours' notice to make arrangements to allow this to happen, the Tenant must allow the Landlord, the EHC official access to:~~
- 21.1.1 Inspect the premises; and / or
- 21.1.2 Clean, maintain or repair the premises;
- 21.2 In the following circumstances the Landlord is allowed to enter the premises without notice to the Tenant:
- 21.2.1 In case of emergency i.e. the health or safety of the Tenant or any other occupant of the building is questionable or in danger, burglary, fire, flood, storm, urgent maintenance and repairs etc;
- 21.2.2 In terms of a court order;
- 21.2.3 If the premises appear to be abandoned by the tenant.
22. **GENERAL**
- 22.1 No changes to the agreement will be valid unless the Landlord and Tenant agree in writing and sign the change.
- 22.2 The Landlord and Tenant agree the agreement contains all the terms that have been agreed to between them.
- 22.3 **The Landlord and the Tenant agree that neither may rely on any undertaking by the other that encouraged them to enter into this agreement, unless the undertaking is recorded in this agreement.**
- 22.4 This agreement and any attachments that are signed by the Landlord and Tenant on different copies of the same documents will still be seen as being signed on one copy between the Landlord and Tenant.
- 22.5 If there are 2 or more Tenant's signing this agreement, then their liability will be joint and several.
23. **INTEREST ON OVERDUE AMOUNTS**
- 23.1 An amount not paid on time will attract interest from the due date until it is paid, at a rate of 2 percent above the Landlord's Bankers current prime overdraft rate per year compounded monthly (i.e. interest on interest on the last calendar day of each of the 12 calendar months).
- 23.2 A letter signed by anyone identified in the letter as a general, branch or other manager of the Landlord's Bankers confirming the prime overdraft rate from time to time will be proof of the rate.
- 23.3 Interest will be payable on damages from the date or dates the damages were suffered.

24. **JURISDICTION**

The Landlord or the Tenant may refer any dispute regarding this lease with the Gauteng Rental Housing Tribunal or High Court.

25. **LIMITATION OF THE TENANTS' RIGHTS**

- 25.1 Parking on the building premises of any vehicle by the Tenant is at his own risk and responsibility and no liability will attach to the Landlord, the EHC official and their agents for any loss or damage suffered as a result of having parked on the building premises. Furthermore the Tenant indemnifies the Landlord, the EHC official and their agents against any claim brought by a visitor or guest of the Tenants as a result of any damages suffered by them to their vehicle while it is parked on the building premises.
- 25.2 All goods brought by the Tenant onto the premises are placed there at his sole risk and responsibility and the Tenant hereby indemnifies the Landlord, the EHC official and their agents against any claims in this regard.
- 25.3 If applicable, jungle gym, and any other amenities situated on the premises are used by the Tenant, his family, friends, employees and guests at their own risk and responsibility and the Tenant hereby indemnifies the Landlord, the EHC official and their agents against any claims in this regard.
- 25.4 The Landlord, the EHC official and their agents will not be responsible or liable to the Tenant, his family, friends, employees, guests and any other parties for any loss not limited to death, injury and financial loss sustained by any of them as a result of any theft, burglary, fire or any other incident on the premises, or in or about the building brought by any reason whatsoever including gross negligence of the Landlord, the EHC official and their agents.
- 25.5 The Landlord, the EHC official and their agents do not accept any responsibility or liability for the receipt or the non-receipt and delivery or non-delivery of goods, postal matter or other correspondence.
- 25.6 Any service in respect of the premises and building, which may be provided by the Landlord, the EHC official and their agents and which is not expressly provided for in this agreement, is provided by the Landlord, the EHC official and their agents at their discretion. Accordingly services may be withdrawn wholly or partially at any time, at the discretion of the Landlord, the EHC official and their agents without affecting the rental payable in terms of this agreement.
- 25.7 The Tenant will be responsible for any act or omission of any professional, subcontractor, employee, agent, friend, acquaintance, or relative, or any person invited to the premises or building by the Tenant, or any of the people mentioned, or any other person at the premises because of the Tenant. Any act or omission of these people will have the same effect as if such act or omission were that of the Tenant.
- 25.8 If at any time the Tenant becomes aware of a dangerous condition on the premises or building which could give rise to a claim for damages against the Landlord, the Agent, the EHC official and their agents or by any party, or which could give rise to damage to the premises or building, or which could be dangerous or harmful to any person on the premises or in the building, the Tenant must immediately:
- 25.8.1 remedy the dangerous condition, if the Tenant is liable to do so in terms of this agreement or in terms of law or otherwise;
- 25.8.2 notify the Landlord in writing and take interim measures to prevent a claim or damage arising, if the Landlord, the EHC official and their agents is liable to remedy the dangerous condition in terms of this

agreement or in terms of the law or otherwise, failing the Tenant indemnifies the Landlord, the EHC official and their agents against any claims by third parties for damages, and any damage to the premises, arising out of the existence of the dangerous condition, and undertakes to pay the Landlord, the EHC official and their agents an amount equal to any award ultimately granted against the Landlord, the EHC official and their agents by any one for any loss, damage or injury suffered in or on the premises and / or building in consequence of any act or omission by the Tenant or an amount equal to any amounts paid or disbursed by the Landlord, the EHC official and their agents in consequence of defending any proceedings contemplated herein.

- 25.9 Without taking away from any of the above indemnities that the Tenant has provided to the Landlord, the EHC official and their agents the Tenant in general and in all respects indemnifies the Landlord, the Agent, the EHC official and their agents against any loss or damage whatsoever, caused by any reason whatsoever, that the Tenant, his family, friends, employees and guests may suffer and holds the Landlord, the EHC official and their agents harmless in respect of loss or damage and undertakes to pay to the Landlord, the EHC official and their agents an amount equal to any award ultimately granted against, the Landlord, the EHC official and their agents arising out of any claim made against the Landlord, the EHC official and their agents by any one for any loss, damage or injury suffered in or on the premises and / or building.

26. **MARITAL CONSENT**

The Landlord and the Tenant hereby confirms that they have complied with all the necessary in terms of the Matrimonial Property Act 88 of 1984 as amended. This means that if any person signing this agreement is married in community of property, the spouse of that person signing the agreement will be considered to have agreed and given the necessary permission to the person signing the agreement.

HOUSE RULES

27. **OBLIGATIONS OF THE TENANT – WHAT THE TENANT MUST AND MUST NOT DO**

27.1 The Tenant must –

- 27.1.1 look after the premises and all other items forming a part of the premises and the building and ensure that all is kept in a good order and condition in so far as it depends on the Tenant;
- 27.1.2 only park his motor vehicle/s in parking bay/s allocated to him by the Landlord;
- 27.1.3 be responsible to look after the premises and return the Premises at the end of the agreement in the same good order and condition as received when the agreement began or as the premises existed after any upgrading work, repair or improvement pursuant to the terms of this agreement, except for fair wear and tear and the defects recorded on defect list, unless the Landlord repaired them after the inspection was done.

27.2 The Tenant must not –

- 27.2.1 act against or allow the breaching of any law or by-law which affects the premises;
- 27.2.2 keep pets on the premises without the Landlord saying the Tenant is allowed to do so in writing;
- 27.2.3 do anything which may potentially cause damage to the premises, the building or anyone else's property and which may be potentially harmful to neighbours or anyone else;

- 27.2.4 leave or allow dirt, refuse, rubbish and the like to pile up in the premises or building or not to be put in rubbish bins;
- 27.2.5 use any gadgets or tools or keep liquid and other substances or do anything which may be a fire hazard, explosive, or a danger which may prejudice the insurance policy of the Landlord or which will cause an increase in insurance premium or a reduction in the scope of insurance cover as the landlord only insured the physical property only.;
- 27.2.6 hand or place any signs, notices or advertisements anywhere on the premises or building without the Landlord saying the Tenant is allowed to do so in writing;
- 27.2.7 allow any bicycles, skateboards, roller skates, scooters boxes, parcels, refuse, rubbish, litter or the like to be left or used on the common property or building premises;
- 27.2.8 allow or do anything which will unreasonable disturb or cause a nuisance to any neighbours and other tenants or the Landlord;
- 27.2.9 allow any auction sales in the premises or building;
- 27.2.10 allow access to the premises or building to any person not personally known by the Tenant and who does not have a valid reason permitable in terms of this agreement to be present at the premises or building;
- 27.2.11 park any unserviceable motor vehicle at the building or allow his visitors to park in any bay not allocated to him other than a visitor's bay, without the Landlord saying the Tenant is allowed to do so in writing. Visitor's parking is allocated on a first come first serve basis. Should visitor's bay not be available the Tenant's visitors will have to park in the street.
- 27.2.12 when the agreement ends hold onto the keys, remote controls, access cards or disks etc. The Tenant must give the keys, remote controls, access cards or disks etc back to the Landlord, at the EHC's office, by latest 12 noon on the day the agreement ends.

28. **RELAXATION OR INDULGENCES**

If the Landlord does not choose to act against the Tenant, even if the Tenant does not follow the agreement, it does not mean that the Landlord cannot demand that the Tenant complies with the agreement at any time thereafter.

29. **THE EHC OR BUILDING**

The Tenant agrees that he will read and understand the EHC / House rules (the rules) and further agrees to accept, obey and co-operate with the rules and any changes thereto and that the terms of the rules are an essential part of the agreement. In this regard, the Tenant agrees that any breaching of the rules is considered by the Landlord to be a breach of the terms of this agreement and the agreement can be cancelled on that basis as well as any penalties that the Tenant may cause the Landlord by his actions herein is allowed to be either charged to the Tenant by the Landlord or deducted from the deposit that the Landlord hold on the Tenant's behalf. A copy of the rules is attached hereto as annexure "A". The Tenant accepts that the rules may change from time to time in which case the Tenant will be notified in writing thereof by the Landlord.

30. **SIGNING ON BEHALF OF ANOTHER**

- 30.1 If a person is signing this agreement on behalf of another, the person doing so is confirming that they have the right to do so.

30.2 If the person signing this agreement is not the Tenant, then the person signing accepts his liability jointly and severally with the Tenant as surety and co-principal debtor for all amounts which may become due to the Landlord by the Tenant at any time in terms of this agreement.

31. **SUB-LETTING LEASING TO SOMEONE ELSE, ALLOWING SOMEONE ELSE TO STAY WITH YOU OR INSTEAD OF YOU**

The Tenant is not allowed to sublet or hire the premises to anyone else unless the Landlord has allowed him to do so on the Landlord's terms in writing failure to adhere to the above the process of termination will be instituted.

32. **TERMINATION IF PREMISES DESTROYED**

At the discretion of the Landlord, if the premises are damaged other than by the Tenant to the extent that they are:

32.1 entirely tenant able, this agreement will terminate immediately and the Tenant will be entitled to a proportionate refund of any rent or tenant contributions paid in advance for the period after termination;

32.2 partially tenant able, the Tenant will be entitled to a proportionate reduction of rent according to the period during which, and extent to which, the lessee is deprived of beneficial occupation.

33. **LETTING OF THE PREMISES**

33.1 The Landlord is allowed to put "TO LET" notices on the premises for 60 calendar days before the agreement ends and the Tenant will allow the Landlord the right to show people whom might want to rent the property. The Tenant is allowed to receive at least 12 hours warning by the Landlord or EHC official before this happens.

33.2 The Tenant also will allow the Landlord or any Agent that the Landlord has appointed, to allow the premises to be shown to potential rentals, on any 2 Sundays per month chosen by the Landlord, between the hours of 12:00 and 17:00. The Tenant specifically agrees to allow the Landlord, the Agent, the EHC official or their agents the right to contact the Tenant on such day for such purpose.

34. **UNENFORCEABLE CLAUSES**

Any clause or provision in this agreement which is or may become illegal, invalid or unenforceable will be treated as if it was not recorded in this agreement and removed from the balance of the agreement without invalidating the remaining clauses and provisions of this agreement or affecting the validity or enforceability of the remaining clauses and provisions.

35. **VACATING THE PREMISES OTHER THAN IN TERMS OF THE AGREEMENT BY THE TENANT**

If the Tenant vacates the premises other than in terms of this agreement, this lease will terminate on the date the Landlord established that the Tenant vacated the premises without jeopardizing any other rights the Landlord may have in terms of this agreement or law, and the Tenant will forfeit the deposit paid to the Landlord.

37. **REQUIREMENTS OF THE STATE**

37.1.1 The tenants declare that neither he or she (i.e. the tenants) nor his or her whom he or she habitually cohabits as if they were married)

Now owns or has previously owned any residential property nor property of which transfer has not yet been taken: nor

is in receipt of any benefit via the subsidy scheme funded or assisted housing scheme including the in depended development benefits of ownership, leasehold or dead of grant or the right to co ownership, leasehold or deed of

grant :and that he or she (the tenant) is aware that his or her name would be placed on received the benefit of subsidy and who would consequently be precluded subsidy or the benefit of another subsidy at any time.

38. EFFECTIVE DATES FOR THE TENANT AND LANDLORD

This agreement will be binding upon the Tenant from date of signature by the Tenant. This agreement will only be binding upon the Landlord upon signature by the Landlord and upon receipt by the Landlord of the deposit, lease administration fee, the first month's rent and tenant contributions unless the Landlord agrees otherwise in writing.

Signed at EDENVALE on this the ____ day of _____

Witness

1. _____

2. _____

Tenant/s

The Tenant understands and agrees that he has read and understood this Lease Agreement and all its annexures, has had all necessary clauses explained by the Landlord, or the EHC official, has been advised of all his rights in terms of the Agreement and all his rights in terms of the relevant sections of the Consumer Protection Act, if applicable, and signs this Agreement freely and voluntarily.

Signed at EDENVALLE on this the ____ day of _____

Witness

1. _____

2. _____

Landlord: Ekurhuleni Housing Company (Pty) Ltd
(Property Manager)

Landlord: Ekurhuleni Housing Company (Pty) Ltd
(Revenue Manager)

ANNEXURE "A"

EHC HOUSE RULES

In order to preserve and maintain the peace, respect and honor the rights and interest of all residents of EHC and in the best interest of community living the lessee, his or her dependents, visitors and all other person for whom the lessee is responsible are to please strictly adhere to these house rules and regulations.

1. Animals, reptiles and birds

- 1.1 A lessee shall not, without the consent in writing of the lessor, which consent shall be given or withheld within the sole discretion of the lessor, without the lessor having to assign any reason therefore keep any animal, reptile or bird on or in the leased premises, the building or on the common property.
- 1.2 Should the lessor grant such approval, the lessor may prescribe any reasonable condition(s).
- 1.3 The lessor may withdraw such approval in the event of any breach of any condition prescribed in terms of sub-rule (2).
- 1.4 A lessee shall refrain from feeding any of the pigeons or other birds in or around the building or common property.

2. Refuse disposal

- 2.1 The lessee shall:
 - 2.1.1 maintain in an hygienic and dry condition, a receptacle for refuse within the leased premises;
 - 2.1.2 ensure that before refuse is placed in such receptacle it is securely wrapped, or in the case of tins or other containers, completely drained , broken glass and any sharp objects are to be securely wrapped before being placed in the receptacle;
 - 2.1.3 for the purpose of having the refuse collected, place such refuse in a sealed refuse bag, without holes or tears in the passages or corridors or within the area designated by the lessor from time to time ;
 - 2.1.4 place refuse out for collection from Mondays to Saturdays between 6h00 and 8h00 only. No refuse is to be place in the passages or corridors before or after the aforesaid times or on Sundays or public holidays, but shall be delivered to the refuse area by the lessee.
 - 2.1.5 shall not place excessive amounts of refuse in the passages or corridors at any time, but shall deliver the excess refuse directly to the refuse area.
 - 2.1.6 no scratching in or searching through the refuse is permitted and only normal domestic refuse may be disposed.

3. Vehicles

- 3.1 Lessees shall only park in the parking bay/s allocated to them.
- 3.2 No lessee shall park or stand any vehicle upon the common property, or allow any vehicle to be parked or stood upon the common property, without the consent of the lessor in writing.
- 3.3 The lessor may cause to be removed or towed away, at the risk and expense of the owner of the vehicle, any vehicle parked, and standing or abandoned on the common property without the lessor's consent without notice.
- 3.4 Lessees shall ensure that their vehicles, and the vehicles of their visitors and guests, do not drip oil or brake fluid or any other fluid on to the common property or in any other way deface the common property.

- 3.5 No lessee shall be permitted to dismantle or affect repairs to any vehicle on any portion of the common property or leased premises.
- 3.6 The revving or excessive hooting of motor vehicles in the parking areas or on the common property is prohibited.
- 3.7 No non-functional, derelict or unused motor vehicle shall be parked in the parking areas or on any portion of the common property or leased premises.
- 3.8 Lessees shall be not park motor vehicles or motor cycles in any areas which are not defined as parking areas.
- 3.9 No lessees shall be permitted to utilize the fire hoses on the common property for any other purpose than for the purpose for which they are intended to be used.
- 3.10 The vehicle of any guests or visitors may not be parked on the common property or any defined parking areas other than in the spaces clearly demarcated for visitors parking (if any) without the EHC official's written consent.
- 3.11 The lessee may not park any of his or her motor vehicle in the space allotted for visitors parking.
- 3.12 The speed limit is a maximum of 10km/h immediately upon turning into the premises.
- 3.13 No lessee shall park more than two motor vehicle on the common property or defined parking areas and even then it is subjected to parking having been allocated to the lessee.
- 3.14 Lessees may not sublet parking bays and or make their own arrangements concerning parking amongst themselves.
- 3.15 The EHC official, security guard and other employees of the lessor are not parking attendants, patrollers or policeman accordingly tenants and their visitors are to ensure that they adhere to these parking rules and regulations and respect the rights of others.

4. **Damage, alterations or additions to the common property or the leased premises**

A lessee shall not mark, paint, drive nails or screws or the like into, or otherwise damage, or alter, any part of the premises, the building or common property.

Tenant responsibility

6.5. **Appearance from outside**

The lessee shall not place or do anything on any part of the common property or the leased premises, including parking area, stairs, landings ,corridors, walkways, balconies, patios, and gardens etc which, in the discretion of the lessor, is aesthetically displeasing or undesirable when viewed from the outside of the leased premises or the common property.

7.6. **Signs and notices**

No lessee shall place any sign, notice, billboard or advertisement of any kind whatsoever on any part of the leased premises or the common property, so as to be visible from outside the leased premises or common property, without the written consent of the lessor first having being obtained.

8.7. **Littering**

A lessee shall not deposit, throw, or permit or allow to be deposited or thrown, on the common property any rubbish, including dirt, cigarette butts, food scraps or any other litter whatsoever.

9.8. **Laundry**

- 8.1 A lessee shall not erect his own washing lines, not hang washing or laundry or any other items on any part of the leased premises, the building or the common property so as to be visible from the outside of the leased

premises the building or the common property and especially not on the veranda's or balconies or over the balustrades and or handrails of the building.

- 8.2 The washing line area serves the entire building and is to be used on a first come first serve basis each day.
- 8.3 The lessor takes no responsibility for any laundry, accordingly the washing line area is used entirely at the risk of the lessee. The lessor will not be held responsible for any lost, stolen or damaged laundry etc.

~~10.9.~~ **Floors and carpets**

- 9.1 The lessee shall keep the carpets or other floor covering and tiles clean and when vacating understands that same shall be cleaned and or replaced completely at the expense of the lessee should they be damaged beyond reasonable wear and tear. Burn marks, stains, holes and chips etc to the carpets or other floor covering and tiles are not considered as wear and tear.
- 9.2 A lessee shall not use "Dri-Brite" or "One-Step" or similar cleaning agents which produce a wax or other build up on the floors of the premises and shall be liable for the cost of stripping and cleaning of the floors should these cleaning agents be used.
- 9.3 Carpets must in all cases be loose layed no glue, nails or any other fixant may be used and the lessee may not install fitted carpets.

~~11.10.~~ **Curtaining**

All windows in the leased premises need to be properly curtained. Blankets, sheets, cardboard, newspaper or any other material other than proper laced curtaining or similar curtaining material may not be used for this purpose.

~~12.11.~~ **Fixtures and fittings**

- 11.1 The lessee shall not remove or permit to be removed any of the fixtures, fittings, equipment or effects without prior written consent of the lessor.
- 11.2 The lessee shall not replace any of the door handles, door locks or keys without the prior written consent of the lessor.

~~13.12.~~ **Sales**

The lessee shall conduct or allow to be conducted, on his behalf or on the behalf of any other person in or about the premises, common areas or the building or parking areas auctions or jumble sales or similar activities of any nature whatsoever.

~~14.13.~~ **Storage of inflammatory material and other dangerous acts**

A lessee shall not store any material, or do or permit or allow to be done, any other dangerous act (which includes setting off fire works) in the leased premises, the building or on the common property which will or may increase the rate of the premium payable by the lessor on any insurance policy.

~~15.14.~~ **Visitors**

All visitors and guests of lessee's and other persons granted rights of access by any lessee are obliged to comply with these conduct / house rules. The right of admission is retained at all times by the Lessor.

~~16.15.~~ **Eradication of pests**

A lessee shall keep the leased premises free of cockroaches, flies, fleas, white ants, borer and other wood destroying insects, rats and mice and to this end shall permit the lessor, the managing agent, and their duly authorized agents or employees or sub-contractors, to enter upon the leased premises from time to time for the purpose of inspecting the leased premises and taking such action as may be reasonably necessary to eradicate any such pests. The costs of the inspection, eradicating any such pests as may be found within the leased premises, replacement of any woodwork or other material forming part of such section which may be damaged by any such pests shall be borne by the lessee.

To this end it is imperative that dirty dishes are not left dirty overnight and that unfinished food is not left unsealed in the leased premises overnight.

~~17-16.~~ **Braai area**

16.1 The lessee may make use of the braai facilities during the following hours only:

Sunday to Thursday: 09h00 to 20h00

Friday to Saturday: 09h00 to 21h00

16.2 No braaing is permitted (skottel braaing included) in or on the leased premises or the common property other than in the area's specifically provided for braaing by the lessor and only with the lessor's braai on such permitted areas.

16.3 Right of admission to the braai area is reserved by the lessor.

~~18-17.~~ **Jungle gym**

~~18-17.1~~ 17.1 The lessee, his or her legal dependents and visitors provided that they are in the company of the lessee or his or her legal dependents only may make use of the jungle gym during the following hours only:

Sunday to Thursday: 09h00 to 20h00

Friday to Saturday: 09h00 to 21h00

17.2. The jungle gym is used entirely at the risk of the children of the lessee, his or her legal dependents and visitors. The lessor accepts no responsibility for injury or death.

17.3 No children over the age of 10 (Ten) years are permitted to use the jungle gym.

17.4 Right of admission to the jungle gym is reserved by the lessor.

18 Common property

18 No lessee shall tamper with or vandalise any of the lessors installations of whatsoever nature installed in the building / common property and shall report any incidents of vandalism or tampering to the EHC official.

19 A lessee shall allow cleaning and maintenance staff / contractor's free access to the building / common property to enable them to clean or repair same.

20 A lessee shall not permit children to play in the building, corridors, passages, stairs, washing area or parking area.

21 No roller skating, skateboarding, cycling, heeled shoes or the like and playing with balls Frisbees and the like is permitted in the building, corridors, passages, parking area, or common property of the building.

21.1 A lessee shall wear sleepwear but is expected to wear clothing that is suitable for appearing in a public place in the common areas of the building.

21.2 The conducting of meetings or the holding of gatherings in the premises, parking areas or on the common property of the building is prohibited

22 Noise

22.1 Excessive and unnecessary noise must be avoided at all times and due consideration must be given to other residents.

22.2 Radios, musical instruments, hi-fi's, televisions, as well as any other item emitting noise may only be used in such a manner so as not to cause any form of disturbance or inconvenience to neighbours and other residents.

22.3 Rowdy behavior, loud music, parties, fighting and the like will not be tolerated and is not permitted.

23 Alcohol

The consumption of alcohol in any manner or form is not permitted in the building, corridors, passages, stairs, lifts, washing area, roof area, foyer and parking area or any part of the common property other than inside the leased premises.

24 Smoking

Smoking in any manner or form is not permitted in the foyer and lifts.

25 Children's Curfew

Sunday to Thursday: 19h00

Friday to Saturday: 20h00

After which time children are not allowed to play on or in the common property and are to be under the direct supervision of the parents / legal guardians inside the leased premises.

26 EHC official, employees and security

24.1 A lessee shall consult the EHC official only during the hours displayed in the building, except in the case of an emergency.

24.2 Disrespectful behavior towards the housing supervisor, the lessor's employees and security guards by the lessee will not be tolerated under any circumstances.

27. Reporting maintenance

All complains shall be registered on tenants complaints book and through EHC officials on site ..

28. Enforcement of rules

It is the responsibility of the lessee to ensure that these rules are adhered to and any deviations or violations by other lessee's should be reported to the EHC official in writing. A breach, non-observance or non-performance of these rules and regulations, shall for all purposes, be considered as a breach of the obligations assumed by the lessee under the lease agreement.

TENANT ACKNOWLEDGEMENT ON HOUSE RULES

Signature main lessee:

Signature of spouse: